

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER

2017 MAY -1 PM 3:48

PLAINTIFF

VS.

CHANCERY CLERK

CAUSE NO. : CV-2016-422W

MATTHEW OLIVER REARDON

BY

DEFENDANT

PETITION FOR EMERGENCY, TEMPORARY RELIEF WITHOUT NOTICE

COMES NOW the Plaintiff, PHYLLIS MARIE CROWDER, and moves the Court for Emergency, Temporary Relief Without Notice, and states as grounds therefore as follows:

1.

Phyllis Marie Crowder is an adult resident of Lafayette County, Mississippi, residing in Oxford, Mississippi 38655.

2.

The Defendant, Matthew Oliver Reardon is a resident of Lafayette County, Mississippi residing in Oxford, Mississippi 38655.

3.

The Plaintiff and Defendant are the natural parents of a minor child, L.E.R., born August 19, 2014. The Plaintiff and Defendant have never been married, and Agreed Order to Establish Paternity, Child Custody and Child Support was entered by this Court on August 8, 2016. A true and correct copy of said Order is attached as Exhibit "A".

4.

In recent days, the Defendant has been calling, harassing, and stalking the Plaintiff and threatening her with bodily harm.

5.

Moreover, Defendant has begun threatening the use of handguns against the Plaintiff. The Defendant is known to carry firearms on his persons.

6.

The Defendant is under the influence of illegal drugs, is mentally and emotionally unstable, is armed and dangerous, and is otherwise a clear, present, and immediate danger to the Plaintiff and the minor child.

7.

That the Plaintiff is in fear for the safety and well-being of her minor child, and for her physical person, and is in legitimate fear of imminent bodily harm from the Defendant.

8.

That counsel for the Plaintiff has attached her Affidavit which avers that providing Notice to the Defendant would, in counsel's best estimation, cause serious harm to the Plaintiff.

9.

The Plaintiff is in real danger of suffering immediate and irreparable injury, loss or damage unless this Court enters a Temporary Restraining Order Without Notice pursuant to Rule 65(b) thereby enjoining Matthew from:

(a) being located within 500 yards from Phyllis and from L.E.R., the minor child of the parties;

(b) from visiting or contacting the residence of the Plaintiff;

(c) having contact with the Plaintiff or L.E.R., in person, through third parties, phone, text, computer or any other technical device, or any other means, directly or indirectly; and,

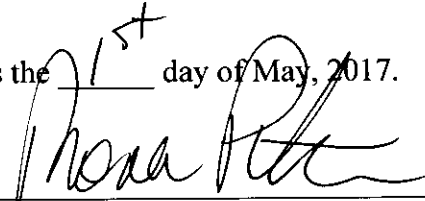
(d) Suspending the Defendant's visitation with the minor child until further Order of the Court.

10.

That the Sheriff of Lafayette County, Mississippi, and his deputies, and all other law enforcement officers, city, county, or state, should be authorized, empowered and directed immediately take Matthew Oliver Reardon into custody, without further order, and incarcerate him in the Lafayette county jail if he violates any provision of this Temporary Restraining Order.

WHEREFORE, PREMISES CONSIDERED, the Plaintiff respectfully requests that the Court enter an Emergency Temporary Order without Notice against the Defendant. The Plaintiff prays for any other relief she may be entitled to under the premises.

RESPECTFULLY SUBMITTED on this the 15th day of May, 2017.

By: 

MONA T. PITTMAN, MSB # 9754
ATTORNEY FOR PLAINTIFF

OF COUNSEL:

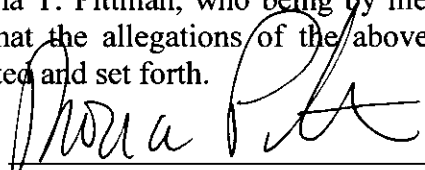
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AFFIDAVIT

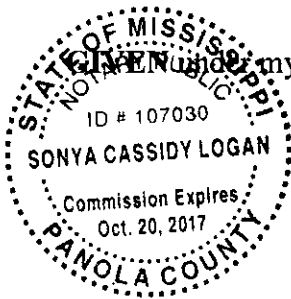
STATE OF MISSISSIPPI

COUNTY OF LAFAYETTE

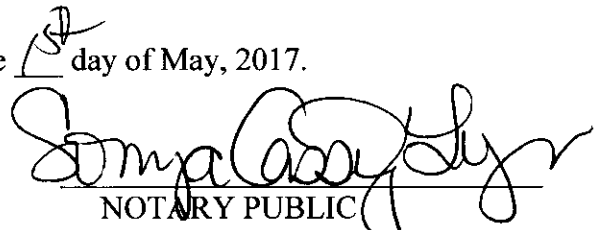
PERSONALLY appeared before me, the undersigned authority in and for the county and state aforesaid, the within named, Mona T. Pittman, who being by me first duly sworn according to law, states upon oath that the allegations of the above and foregoing Motion are true and correct as therein stated and set forth.



MONA T. PITTMAN



GIVEN under my hand and official seal this the 18 day of May, 2017.



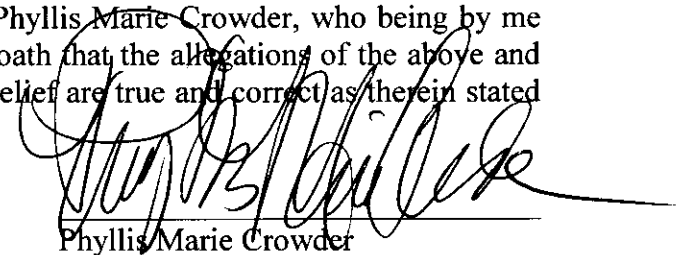
NOTARY PUBLIC

AFFIDAVIT

STATE OF MISSISSIPPI

COUNTY OF LAFAYETTE

PERSONALLY appeared before me, the undersigned authority in and for the county and state aforesaid, the within named, Phyllis Marie Crowder, who being by me first duly sworn according to law, states upon oath that the allegations of the above and foregoing Motion for Emergency Temporary Relief are true and correct as therein stated and set forth.



Phyllis Marie Crowder

GIVEN under my hand and official seal this the ____ day of May, 2017.

NOTARY PUBLIC

My Commission Expires: _____